

of prevailing on appeal such that a new trial would be required. In addition, BNSF and Schaefer's concerns about how the Court's ruling on Oakley's motion for summary judgment will affect the presentation of evidence at trial can be addressed by in motions in limine if appropriate and necessary. Further, a delay pending appeal will likely delay this case by possibly several years. Having considered all the arguments, the Court exercises its discretion and denies the request for a stay.

The clerk of the Court is directed to set the matter on the Case Management Conference (CMC) calendar for re-setting of the trial date and give notice of such date to all parties.

2. 9:00 AM CASE NUMBER: C23-01360
CASE NAME: LESLEE MARKHAM VS. MICHELLE TIERNAN
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: TIERNAN, MICHELLE
TENTATIVE RULING:

The hearing is continued to 9:00 a.m. on June 15, 2026, pursuant to the stipulation of the parties.

3. 9:00 AM CASE NUMBER: C23-01577
CASE NAME: APP FUNDING, LLC VS. GEORGE FRIE
***HEARING ON MOTION IN RE: ORDER TO AMEND DEFENDANTS' NAMES IN THE JUDGMENT**
FILED BY: APP FUNDING, LLC
TENTATIVE RULING:

Plaintiff and judgment creditor APP FUNDING, LLC ("Plaintiff") filed a Motion for Order to Amend Defendants' Names in the Judgment on October 30, 2025 (the "Motion to Amend Judgment"). The Motion to Amend Judgment was set for hearing on January 12, 2025.

Background

A sister-state Judgment was entered herein against the following defendants and judgment debtors (the "Defendants") on June 20, 2025 (the "Judgment"):

BE CLINICAL, INC. D/B/A BE CLINICAL
AEROHIVE NETWORKS, INC.
FIONA'S SWEETSHOPPE, CORP.
BE CLINICAL AESTHETICS AND WELLNESS, P.C.
BE CLINICAL HOLDINGS, INC.
FIGE, LLC
GEORGE W. FRIE